

CHAPTER 42.

An Act to amend the Workmen's Compensation Act, 1906, and the Acts amending that Act, and to amend the law with respect to employers' liability insurance, the notification of accidents, first aid, and ambulance. [16th November 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment of Benefits under Principal Act.

1. The Workmen's Compensation (War Addition) Acts, 1917 and 1919, shall cease to have effect after the thirty-first day of December, nineteen hundred and twenty-three, and are hereby repealed :

Repeal
of War
Addition
Acts.
7 & 8 Geo. 5,
c. 42.
9 & 10 Geo. 5,
c. 83.
6 Edw. 7,
c. 58.

Provided that the addition provided for in the said Acts shall continue to apply to a weekly payment payable to a workman under the Workmen's Compensation Act, 1906 (hereinafter referred to as the principal Act), or under any enactment superseded by that Act, in respect of total incapacity arising from an accident which occurred on or before the said thirty-first day of December so long as the workman remains totally incapacitated, and the addition shall, for all purposes, be treated as if it were part of the weekly payment.

2. Where a workman leaves a widow or other member of his family (not being a child under the age of fifteen) wholly or partially dependent upon his earnings, and, in addition, leaves one or more children under the age of fifteen so dependent, then—

Increase of
amount pay-
able on death
of workman
leaving
children.

- (a) if both the widow or other member of the workman's family and such child or children as aforesaid were all wholly dependent on the workman's earnings, there shall, in respect of each such child, be added to and dealt with as

part of the compensation payable under paragraph (1) (a) of the First Schedule to the principal Act, a sum equal to fifteen per cent. of the amount arrived at by multiplying the average weekly earnings of the workman, or where such earnings are less than one pound, then by multiplying one pound, or where such earnings exceed two pounds then by multiplying two pounds, by the number of weeks in the period between the death of the workman and the date when the child will attain the age of fifteen, fractions of a week being disregarded ; and

- (b) if the widow or other member of the workman's family or such child or children as aforesaid, or any of them, were partially dependent on the workman's earnings, there shall be paid as part of the compensation under the said paragraph such proportion of the sum which would have been payable under the foregoing paragraph of this section if all such persons had been wholly dependent as may be agreed upon or in default of agreement as may, taking into consideration the amount payable under the principal Act, be determined by arbitration under the principal Act to be reasonable.

Provided that the total amount of compensation payable to the dependants shall in no case exceed six hundred pounds.

Increase of
minimum
amount of
compensation
in fatal cases.

3. Paragraph (1) of the First Schedule to the principal Act shall have effect as if for the words "one hundred and fifty pounds" there were substituted the words "two hundred pounds."

Variation of
amount of
weekly
payment.

4.—(1) In paragraph (1) (b) of the First Schedule to the principal Act, thirty shillings shall be substituted for one pound as the maximum amount of the weekly payment.

(2) Where the maximum weekly payment payable under the principal Act, as amended by the foregoing subsection, to a workman who is totally incapacitated is less than twenty-five shillings, the workman shall be entitled during such incapacity to a weekly addition

equal to one-half of the difference between such maximum weekly payment and the sum of twenty-five shillings or his average weekly earnings, whichever is the less, and such addition shall, for all the purposes of the principal Act, be treated as if it were part of the weekly payment.

(3) In the case of partial incapacity, the weekly payment shall, subject to the provisions of paragraph (3) of the said Schedule, be of the following amount:

- (a) if the maximum weekly payment, had the incapacity been total incapacity, would have amounted to twenty-five shillings a week or upwards, the weekly payment in case of partial incapacity shall be one-half the difference between the amount of the average weekly earnings of the workman before the accident and the average weekly amount which he is earning or is able to earn in some suitable employment or business after the accident;
- (b) if the maximum weekly payment would, had the incapacity been total incapacity, have amounted with such addition, if any, as is provided by subsection (2) of this section, to less than twenty-five shillings, the weekly payment in case of partial incapacity shall be a sum bearing the same proportion to the said difference as the said maximum weekly payment with such addition as aforesaid bears to the amount of the average weekly earnings of the workman before the accident.

(4) Proviso (b) to paragraph (1) of the said Schedule which relates to the amount of the weekly payment in the case of a workman who is under twenty-one years of age at the date of the injury shall cease to have effect.

5. Compensation shall be payable under the principal Act if the injury disables the workman for more than three days from earning full wages at the work at which he was employed, but shall not be payable in respect of the first three days on which he is so disabled unless the incapacity lasts for four weeks or upwards.

Waiting
period.

Provision
with respect
to certified
schemes.

6.—(1) If it appears to the Registrar of Friendly Societies that any scheme duly certified by him under subsection (1) of section three of the principal Act no longer complies with the requirements of that section by reason of the foregoing provisions of this Act, he shall make such amendments of the scales of compensation provided by the scheme as may in his opinion be necessary to render them not less favourable to the workmen and their dependants than the corresponding scales contained in the principal Act as amended by this Act.

(2) Where the Registrar has amended scales of compensation provided by any such scheme as aforesaid, the scheme shall have effect as if when originally made it had provided for the substitution, as from the date of the commencement of this Act, of the amended scales for the scales originally contained therein, and the amended scales shall continue to apply until the expiry of the certificate in force at the commencement of this Act or of any renewal thereof given by the Registrar under the principal Act.

Inclusion of certain Accidents happening when Workman acting contrary to Regulations, &c.

Inclusion of
certain
accidents
happening
when work-
man acting
contrary to
regulations,
&c.

7. For the purposes of the principal Act, an accident resulting in the death or serious and permanent disablement of a workman shall be deemed to arise out of and in the course of his employment, notwithstanding that the workman was at the time when the accident happened acting in contravention of any statutory or other regulation applicable to his employment, or of any orders given by or on behalf of his employer, or that he was acting without instructions from his employer, if such act was done by the workman for the purposes of and in connection with his employer's trade or business.

Extension of principal Act.

Extension of
principal Act
to certain
share
fishermen.

8. Section seven of the principal Act shall have effect as if for subsection (2) thereof the following subsection were substituted:—

“(2) This Act shall not apply to such members of the crew of a fishing vessel as are remunerated wholly or

mainly by shares in the profits or gross earnings of the working of such vessel, except in such cases and subject to such modifications as the Secretary of State may by order provide :

“ Provided that no such order shall come into force until it has been laid before each House of Parliament for a period of not less than twenty-one days during which the House has sat, and, if either House before the expiration of those twenty-one days presents an address to His Majesty against the order or any part thereof, no further proceedings shall be taken thereon, but without prejudice to the making of a new order.”

9.—(1) The definition of “workman” in section thirteen of the principal Act shall have effect as if for the words “two hundred and fifty pounds,” there were inserted the words “three hundred and fifty pounds.”

Extension of
definition of
workman.

(2) For the purposes of the principal Act, the expression “workman” shall include:—

- (a) a person engaged in plying for hire with any vehicle or vessel the use of which is obtained from the owner thereof under any contract of bailment (or in Scotland any contract of letting to hire), other than a hire purchase agreement, in consideration of the payment of a fixed sum or a share in the earnings or otherwise, and in relation to such a person the owner of the vehicle or vessel shall, for the purposes of the principal Act, be deemed to be the employer ;
- (b) a person whose employment is of a casual nature, and who is employed otherwise than for the purposes of his employer's trade or business, if employed for the purposes of any game or recreation, and engaged or paid through a club, and in such case the manager or members of the managing committee of the club shall, for the purposes of the principal Act, be deemed to be the employer ;
- (c) any person, not being a master seaman or apprentice to the sea service or the sea fishing service, employed on board any such ship as is mentioned in section seven of the principal Act, if so employed for the purposes of the ship or of

any passengers or cargo or mails carried by the ship, and if he otherwise complies with the provisions of the principal Act defining workman.

Amendments as to procedure under principal Act.

Provisions
as to notices
of accidents.

10.—(1) There shall be kept constantly posted up in some conspicuous place at or near every mine, quarry, factory or workshop and on every ship to which section seven of the principal Act applies, where it may be conveniently read by the persons employed, a summary, in such form as may be prescribed, of the requirements of the principal Act as amended by this Act, with regard to the giving of notice of accidents and the making of claims and the procedure to be followed in the case of industrial diseases, and, in the event of such summary becoming effaced, obliterated or destroyed, it shall be renewed with all reasonable dispatch.

In the event of any non-compliance with the provisions of this subsection the owner, agent or manager of the mine or quarry or the occupier of the factory or workshop or the master of the ship shall be guilty of an offence and liable on summary conviction to a fine not exceeding five pounds, and any such proceedings, other than proceedings against a master of a ship, may be instituted by an inspector of mines or factories.

(2) The want of, or any defect or inaccuracy in, the notice of an accident required by section two of the principal Act shall not be a bar to the maintenance of proceedings for the recovery of compensation under the principal Act if the employer is proved to have had knowledge of the accident from any source at or about the time of the accident; or, where the employer is the owner of a mine or quarry or the occupier of a factory or workshop,—

- (a) if such summary as aforesaid has not been posted up in accordance with the provisions of this section;
- (b) if the accident has been reported by or on behalf of the employer to an inspector of mines or factories;
- (c) if the accident has been entered in any register of accidents kept by or on behalf of the employer at the mine, quarry, factory or workshop;

(d) if the injury has been treated in an ambulance room at the mine, quarry, factory or workshop.

(3) Notice of an accident for the purpose of section two of the principal Act may be given either in writing or orally to the employer or to any foreman or other official under whose supervision the workman is employed or to any person designated for the purpose by the employer.

(4) For facilitating the giving of notice of accidents for the purposes of section two of the principal Act, a book in the prescribed form shall be kept at every mine, quarry, factory or workshop, in which the prescribed particulars of accidents happening to persons employed at the mine, quarry, factory or workshop may be entered by the injured workman or some other person acting on his behalf, and an entry in such book, if made as soon as practicable after the happening of the accident, shall be sufficient notice of the accident for the purposes of the said section.

The book shall be kept at such place as to be readily accessible at all reasonable times to any injured workman who was employed at the mine, quarry, factory or workshop, and any person *bonâ fide* acting on his behalf.

If in the case of any mine, quarry, factory or workshop the provisions of this subsection are not complied with, the mine, quarry, factory or workshop shall be deemed not to be managed or kept in conformity with the enactments relating thereto.

(5) The fact that a workman has not given notice of an accident in a case where the necessity of giving such a notice is dispensed with shall not deprive the employer of his right under paragraph (4) of the First Schedule to the principal Act to require the injured workman to submit himself to medical examination.

(6) For the purposes of this section, the expression "factory or workshop" shall include any works or premises to which any of the provisions of the Factory and Workshops Acts, 1901 to 1920, apply; and the expression "prescribed" means prescribed by the Secretary of State.

11.—(1) The power of the registrar of a county court under paragraph (15) of the First Schedule to the principal Act to refer a matter to a medical referee may

Provisions as
to medical
referees.

be exercised on the application of one of the parties as well as on the application of both parties, subject however to appeal to the judge, and where the application is made by only one of the parties, the registrar, or on appeal the judge, if he is of opinion that, owing to the exceptional difficulty of the case or for any other sufficient reason, the matter ought to be settled in default of agreement by arbitration, shall refuse to allow the reference.

(2) Where a matter is referred to a medical referee under paragraph (f) of subsection (1) of section eight of the principal Act, the medical referee when deciding the matter shall also certify as to the condition of the workman at the time when he is examined by the medical referee, and such certificate by the medical referee shall be conclusive.

(3) For paragraph (5) of the Second Schedule to the principal Act the following paragraph shall be substituted:—

(5) A judge of county courts may in any case, if he thinks fit, and shall, if any party in accordance with rules of court so requires and gives security for the payment of the prescribed fee, summon a medical referee to sit with him as assessor.

If a medical referee is so summoned on the application of any party, that party shall, notwithstanding anything in section ten of the principal Act, but subject to any directions as to costs, be liable to pay in respect of the attendance of the medical referee such fee as may be prescribed by the Secretary of State.

Additional
powers of
county
courts
with respect
to regis-
tration of
lump sum
agreements.

12.—(1) Where a memorandum of an agreement for the payment of a lump sum is under the principal Act sent for registration, the registrar, and if in pursuance of the principal Act or this Act the matter is referred to the judge, the judge of the county court shall have power, in accordance with rules of court,—

- (a) to require either party to the agreement to furnish him either orally or in writing with such information as he may consider necessary, or to
- require the attendance of any of the parties to the agreement before him ;

- (b) when the information as to the workman's condition appears to him to be insufficient or conflicting, to require a report as to the workman's condition to be obtained from a medical referee;

In the event of either of the parties failing to comply with any requirement of the registrar under this subsection, the registrar may refuse to record the memorandum and refer the matter to the judge, who shall have power to make such order as he may in the circumstances think just.

- (2) Where it appears from any such report of a medical referee that the prospects of the workman's recovery from incapacity cannot as yet be approximately determined, the registrar, or on appeal the judge, may refuse to record the memorandum.

- (3) Any such agreement shall disclose the amount, if any, paid or payable under or in respect of the agreement by the employer to the solicitor of the workman or his dependants as costs, and, if it appears to the registrar that the amount is excessive, the registrar may direct that the bill of costs be submitted to him for taxation and thereupon the registrar shall, subject to review by the judge, tax such costs in accordance with rules of court, and if the costs are reduced on such taxation, the amount of such reduction shall either be applied and dealt with for the benefit of the workman or his dependants or paid to the employer or otherwise dealt with as the judge may direct.

- (4) The approved society or committee by which sickness or disablement benefit under the National Insurance Act, 1911, and the Acts amending that Act, payable to the workman is administered, shall be entitled to send to the registrar objections to the registration of any such agreement as aforesaid, and, in the event of the attendance of any of the parties to the agreement being required, shall be entitled to appear before the registrar, or, if the matter is referred to the judge, before the judge.

1 & 2 Geo. 5.
c. 55.

- (5) Rules of court may be made providing that in any case where in connection with an application for the registration of any such agreement as aforesaid there is a hearing before the registrar or the judge, or a report

from the medical referee is required to be obtained, the registrar or judge shall have the power of awarding costs.

Power to
make agree-
ments as to
compen-
sation to
workmen
disabled by
industrial
disease.

13. Where a workman claims to be suffering from and disabled by a disease to which the provisions of section eight of the principal Act apply, the employer may agree with the workman that he is liable to pay compensation without requiring the workman to obtain the certificate of the certifying surgeon mentioned in the said section, and thereupon the workman shall be entitled to compensation as for injury by accident from the date of the agreement or from such other date as may be agreed.

Any such agreement may be recorded in the manner provided by paragraph (9) of the Second Schedule to the principal Act and shall be enforceable against the employer in like manner and subject to the same provisions as an agreement to pay compensation in case of an injury by accident.

Miscellaneous Amendments of the Principal Act.

Restrictions
on ending or
diminishing
weekly pay-
ments.

14. An employer shall not be entitled otherwise than in pursuance of an agreement or arbitration to end or diminish a weekly payment under the principal Act except in the following cases :—

- (a) where a workman in receipt of a weekly payment in respect of total incapacity has actually returned to work ;
- (b) where the weekly earnings of a workman in receipt of a weekly payment in respect of partial incapacity have actually been increased ;
- (c) where the medical practitioner who has examined the workman under paragraph (14) of the First Schedule to the principal Act has certified that the workman has wholly or partially recovered, or that the incapacity is no longer due in whole or in part to the accident, and a copy of the certificate (which shall set out the grounds of the opinion of the medical practitioner) together with notice of the intention of the employer at the expiration of ten clear days from the date of the service of the notice to

end the weekly payment, or to diminish it by such amount as is stated in the notice, has been served by the employer upon the workman :

Provided that—

- (i) in the last-mentioned case, if before the expiration of the said ten clear days the workman sends to the employer the report of a duly qualified medical practitioner (which report shall set out the grounds of his opinion) disagreeing with the certificate so served by the employer, the weekly payment shall not be ended or diminished, except in accordance with such report, or if and so far as the employer disputes such report, except in accordance with the certificate given by a medical referee in pursuance of paragraph (15) of the said Schedule as amended by this Act; and
 - (ii) where an application has been made in pursuance of the said paragraph (15) as so amended to refer the dispute to a medical referee, it shall be lawful for the employer,
 - pending the settlement of the dispute, to pay into court—
 - (a) where the notice was a notice to end the weekly payment, the whole of each weekly payment becoming payable in the meantime;
 - (b) where the notice was a notice to diminish the weekly payment, so much of each weekly payment so payable as is in dispute;
- and the sums so paid into court shall, on the settlement of the dispute, be paid to the employer or to the workman according to the effect of the certificate of the medical referee, or, if the effect of that certificate is disputed, as in default of agreement may be determined by the registrar or, on appeal, the judge;
- (iii) nothing in this section shall be construed as authorising an employer to end or diminish a weekly payment in any case in which, or to an extent to which, apart from this section, he would not be entitled to do so.

Power to review weekly payments on fluctuations in rate of remuneration.

15. A weekly payment payable in respect of an injury by an accident happening after the commencement of this Act may, at any time after six months from the date of the accident, be reviewed at the request either of the workman or of the employer, if it is claimed that, had the workman remained uninjured and continued in the same class of employment as that in which he was employed at the date of the accident, the average weekly earnings of the workman during the twelve months immediately preceding the review would, as a result of fluctuations in rates of remuneration, have been greater or less by more than twenty per cent. than the average weekly earnings of the workman during the twelve months previous to the accident (or if the weekly payment has been previously varied on a review under this section during the twelve months previous to that review or the last of such reviews), and where such a claim as aforesaid is proved the weekly payment shall be varied so as to make it such as it would have been if the rates of remuneration obtaining during the twelve months previous to the review had obtained during the twelve months previous to the accident.

Power to order partial incapacity to be treated as total incapacity in certain cases.

16. If a workman who has so far recovered from the injury as to be fit for employment of a certain kind proves to the satisfaction of the judge of the county court that he has taken all reasonable steps to obtain, and has failed to obtain, such employment, and that his failure to obtain such employment is a consequence, wholly or mainly, of the injury, the judge shall order that his incapacity shall, for the purposes of the principal Act, continue to be treated as total incapacity for such period, and subject to such conditions, as may be provided by the order, without prejudice however to the right of review conferred by paragraph (16) of the First Schedule to the principal Act:

Provided that every such order shall be made subject to the condition that it shall cease to be in force if the workman receives unemployment benefit.

Amendment of s. 3 of the principal Act relating to certification of schemes.

17. The Registrar of Friendly Societies shall not certify or renew the certificate of any scheme under section three of the principal Act unless he is satisfied that adequate provision is made to secure the discharge of liabilities arising under the scheme, both during the

currency of the scheme and after the scheme is revoked or expires, so far as there may be any liabilities outstanding at the date of revocation or expiry.

18. For subsection (4) of section one of the principal Act the following subsection shall be substituted :—

Amendment
of s. 1 (4) of
the principal
Act.

(4) If, within the time hereinafter in this Act limited for taking proceedings, an action is brought to recover damages independently of this Act for injury caused by an accident, and it is determined in such action or on appeal that the injury is one for which the employer is not liable in such action, but that he would have been liable to pay compensation under the provisions of this Act, the action shall be dismissed; but the court in which the action is tried, or, if the determination is the determination on an appeal (by either party) by an appellate tribunal, that tribunal shall, if the plaintiff so choose, proceed to assess such compensation, but may deduct from such compensation all or part of the costs which, in its judgment, have been caused by the plaintiff bringing the action instead of proceeding under this Act. In any proceeding under this subsection, when the court or appellate tribunal assesses the compensation, it shall give a certificate of the compensation it has awarded and the directions it has given as to the deduction of costs, and such certificate shall have the force and effect of an award under this Act :

Provided that an appellate tribunal may, instead of itself assessing such compensation, remit the case to the county court for the assessment of the compensation, and in such case may order the county court to deduct from the amount of compensation assessed by it all or part of such costs as aforesaid.

19.—(1) Where either a receiver is appointed on behalf of the holders of any debentures of a company secured by a floating charge, or possession is taken by or on behalf of those debenture-holders of any property comprised in or subject to the charge, then—

Amendment
of s. 5 of
principal
Act as to
bankruptcy
of employer.

(a) if the company has entered into a contract with any insurers in respect of any liability under the principal Act to any workman, the rights of the

company against the insurers in respect of that liability shall be transferred to and vest in the workman in like manner as if an order for the winding-up of the company had been made ;

- (b) if no such contract has been entered into, the amount due in respect of any compensation under the principal Act, the liability whereof accrued before the date of the appointment of the receiver or of possession being taken as aforesaid, as the case may be, shall be included amongst the debts which under section one hundred and seven of the Companies (Consolidation) Act, 1908, are to be paid in priority to all other debts.

8 Edw. 7.
c. 69.

(2) The limitation to one hundred pounds in any individual case on the amounts due by way of compensation, which under subsection (3) of section five of the principal Act are to be included in the debts to be paid in priority to other debts in the case of a bankruptcy or winding-up, shall cease to have effect.

(3) Accordingly section five of the principal Act shall have effect subject to the amendments mentioned in the First Schedule to this Act.

Provisions
as to the
detention of
ships.

20.—(1) Section eleven of the principal Act, which provides for the detention of ships for the purpose of enforcing claims for compensation against the owners thereof if resident abroad, shall have effect as if the following paragraph were inserted therein :—

“ Where a complaint is made to the Secretary of State that before an application can be made under this section the ship in respect of which the application is to be made will have departed from the limits within which she can be arrested, the ship shall, if the Secretary of State so directs, be detained for such time as will allow the application to be made and the result thereof to be communicated to the officer detaining the ship, and that officer shall not be liable for any costs or damages in respect of the detention, if made in accordance with the directions of the Secretary of State.”

(2) Where a ship has been demised to charterers, the provisions of the said section eleven as so amended shall

apply to claims against the charterers of the ship as they apply to claims against the owners of a ship with the substitution of charterers for owners :

Provided that no ship shall be detained on a claim against the charterers of the ship after the expiration of the term for which the ship is demised to them.

(3) Without prejudice to any other means of enforcing claims in Scotland, the said section eleven as so amended shall, with the substitution of references to the sheriff for references to a judge of any court of record in England, apply to a ship found in any port or river of Scotland, or within three miles of the coast thereof, in like manner as it applies to a ship found in any port or river of England or within three miles of the coast thereof.

21. Where after the commencement of this Act the person against whom a claim for compensation is made under the principal Act disputes his liability to pay compensation, but makes an agreement whereby in consideration of the payment of a lump sum the claim for such compensation purports to be precluded, the agreement shall be sent for registration in like manner and subject to the like conditions as in the case of an agreement for redemption of the weekly payment by a lump sum, and unless and until the agreement is registered in accordance with those provisions, the agreement shall not, nor shall the payment of any sum payable thereunder, exempt the employer from liability under the principal Act :

Registration of agreements compromising disputed claims.

Provided that in determining whether or not the lump sum agreed to be paid as aforesaid is adequate, the registrar, or, if the matter is referred to the judge, the judge, shall have regard to the question whether or not liability to pay compensation under the principal Act is doubtful.

22. For the purposes of the principal Act, a person shall not be deemed to be a partial dependant of another person unless he was dependent partially on contributions from that other person for the provision of the ordinary necessities of life suitable for persons in his class and position.

Definition of partial dependency. •

Repayment
of poor
relief.

23. Where an authority has granted out-door relief to a person pending the settlement of his claim to compensation under the principal Act or any scheme certified thereunder, and either—

- (a) such relief would not have been granted had the person then received or been in receipt of compensation under the principal Act ; or
- (b) such relief is in excess of the amount which would have been granted had the person then received or been in receipt of such compensation ;

the authority may give notice of the relief so provided to the person liable to pay the compensation, and if such notice is given the person so liable shall on demand, and on being furnished with a certificate by the authority of the amount of the relief so provided or of the amount of such excess, as the case may be, repay to the authority, up to the amount which he is liable to pay as compensation, less such part (if any) of that amount as he has already duly paid at the time of receiving the notice aforesaid, the amount of the relief or of the excess certified as aforesaid, and the receipt of the authority shall, up to the amount of the repayment, be a full and valid discharge to that person in respect of the compensation payable by him to the person relieved :

Provided that, if the person so liable to pay compensation gives to the authority by which such notice as aforesaid is given notice that he intends to pay, or that he has paid, compensation, he shall not be under any obligation to make any repayment in respect of any relief provided after the date of the payment of the compensation or after the time at which the notice so given is received by the authority, whichever is the later.

Minor
amendments
of principal
Act.

24.—(1) Where a dependant dies before a claim under the principal Act is made, or, if a claim has been made, before an agreement or award has been arrived at or made, the legal personal representative of the dependant shall have no right to payment of compensation, and the amount of compensation shall be calculated and apportioned as if that dependant had died before the workman.

(2) No deduction shall be made under paragraph (1) (a) (i) of the First Schedule to the principal Act, as amended by section two of this Act, in respect of the amount of any weekly payments made under the

principal Act, so as to reduce the sum payable in respect of the children of the workman under the said section two, nor so as to reduce the amount payable under the principal Act below two hundred pounds.

(3) Paragraph (1) (a) (iii) of the First Schedule to the principal Act shall have effect as if "fifteen pounds" were substituted for "ten pounds."

(4) In paragraph (2) of the First Schedule to the principal Act, after paragraph (d) there shall be inserted :

(e) Upon request of an injured workman to the employer liable to pay compensation under this Act, such employer shall furnish in writing a list of the earnings of that workman upon which the amount of average weekly earnings may be calculated for the purpose of determining the amount of any weekly payment under this Act.

(5) Section six of the principal Act (which relates to remedies both against employer and stranger) and paragraph (19) of the First Schedule to the principal Act (which prohibits a weekly payment, or a sum by way of redemption thereof, being assigned, charged, or attached) shall apply to sums paid or payable by way of compensation under a scheme certified under the principal Act in like manner as they apply to sums paid or payable by way of compensation under the principal Act.

(6) For the proviso to paragraph (16) of the First Schedule to the principal Act the following proviso shall be substituted :

"Provided that, where the workman was at the date of the accident under twenty-one years of age, and the review takes place more than six months after the accident, and before the workman attains the age of twenty-one years, the amount of the weekly payment may be increased to such an amount as would have been awarded if the workman had at the time of the accident been earning the weekly sum which he would probably have been earning at the date of the review if he had remained uninjured."

(7) The provisions of paragraph (17) of the same Schedule, which fix the amount of the lump sum for which a weekly payment may be redeemed where the incapacity is permanent, shall not apply in the case where

the injured workman is at the date when the application for the redemption is made under twenty-one years of age, and where in the case of an injured workman under the age of twenty-one the lump sum for which the liability to the weekly payment may be redeemed is determined by arbitration under the principal Act, the right which if the redemption did not take place the workman would have under the proviso to paragraph (16) of the said Schedule shall be taken into account.

(8) Paragraph (18) of the same Schedule, which provides for the cessation of the weekly payment of a person ceasing to reside in the United Kingdom, shall have effect, as respects changes of residence after the commencement of this Act, as if for the words "United Kingdom" there were substituted the words "Great Britain, Northern Ireland, the Channel Islands or the Isle of Man."

(9) Proviso (iii) to paragraph (c) of subsection (1) of section eight of the principal Act, which provides for contributions where more employers than one are liable, shall have effect as if at the end thereof there were added the words "or if the amount of compensation is not in dispute, as may be determined by arbitration under this Act."

(10) Section fourteen of the principal Act is hereby repealed.

Provisions as
to fees.

25.—(1) Where a reference is made to a medical referee under paragraph (15) or paragraph (18) of the First Schedule to the principal Act, as amended by this Act, or where on an application for the registration of a memorandum of agreement a report of a medical referee is required under this Act to be obtained, there shall, notwithstanding anything in section ten of the principal Act, but subject to any directions as to costs, be payable by the applicant for the reference or for the registration of the memorandum such fee in respect of the remuneration and expenses of the medical referee as the Secretary of State may prescribe, and provision may be made by rules of court for the payment of such fees through the registrar of the county court.

All such references shall be made and reports obtained in accordance with regulations of the Secretary of State.

(2) In paragraph (15) of the First Schedule to the principal Act the words "on payment by the applicants of such fee not exceeding one pound as may be prescribed" shall be repealed.

26.—(1) For the purpose of giving effect to any Convention with a Foreign State providing for reciprocity in matters relating to compensation to workmen for injuries by accident, it shall be lawful for His Majesty by Order in Council to make provision—

Power to make Orders in Council for giving effect to conventions with Foreign States.

- (a) for modifying the principal Act in its application to cases affected by the Convention, so, however, as not to alter the amount of compensation in any case to which the principal Act may apply;
- (b) for determining, in cases where rights to compensation accrue both under the principal Act and under the law of the State with which the Convention is made, under the law of which country the workman shall be entitled to recover compensation;
- (c) for conferring on county courts powers for the admission of evidence taken abroad and the procuring and taking of evidence for use abroad, or otherwise for the purpose of facilitating proceedings for the recovery of compensation under the respective laws of the two countries.

(2) If the Convention extends to Northern Ireland, the provisions of this section shall extend to the enactments regulating the payment of compensation to workmen for injuries by accident for the time being in force in Northern Ireland.

27.—(1) The Secretary of State may by order extend the provisions of the principal Act, as amended by this Act, subject to such modifications and exceptions as may be specified in the order, to such persons, being workmen within the meaning of the principal Act, employed as pilot, commander, navigator, or member of the crew of any aircraft to which this section applies when outside Great Britain, in such circumstances as may be specified in the order.

Power to extend principal Act to aircraft outside Great Britain.

(2) The aircraft to which this section applies are aircraft registered in Great Britain and Northern Ireland, the owner of which resides or has his principal place of business in Great Britain.

(3) An order under this section shall not come into force until it has been laid before each House of Parliament for a period of not less than twenty-one days during which that House has sat, and, if during that period either House presents an address to His Majesty against the order or any part thereof, no further proceedings shall be taken thereon, but without prejudice to the making of a new order.

Notification of Accidents; First Aid and Ambulance.

Notification
of accidents.
6 Edw. 7.
c. 53.

28.—(1) Section four of the Notice of Accidents Act, 1906, shall have effect as if for subsection (1) thereof the following subsection were substituted:—

“Where any accident occurs in a factory or workshop which either—

(a) causes loss of life to a person employed in the factory or workshop; or

(b) disables any such person for more than three days from earning full wages at the work at which he was employed;

written notice of the accident, in such form and accompanied by such particulars as the Secretary of State may prescribe, shall forthwith be sent to the inspector of the district.”

(2) Section one of the Notice of Accidents Act, 1906, so far as it relates to metalliferous mines and quarries, shall have effect as if for the words “and disabled for more than seven days any person employed in or about the mine or quarry from working at his ordinary work,” there were substituted the words “and disabled for more than three days any person employed in or about the mine or quarry from earning full wages at the work at which he was employed.”

1 & 2 Geo. 5.
c. 50. (3) Paragraph (b) of subsection (1) of section eighteen of the Coal Mines Act, 1911, shall have effect as if for the words “and disabled for more than seven days any person employed in or about the mine from working at his ordinary work,” there were substituted the words “and disabled for more than three days any person employed in or about the mine from earning full wages at the work at which he was employed.”

(4) This section shall be construed as one with the Notice of Accidents Act, 1906, or the Coal Mines Act, 1911, as the case may require.

29.—(1) In every factory the following requirements shall have effect :—

First-aid and
ambulance
and safety
orders.

- (a) There shall be provided and maintained so as to be readily accessible a first-aid box or cupboard of the prescribed standard, and, where more than one hundred and fifty persons are employed, an additional box or cupboard for every additional one hundred and fifty persons.

The number of first-aid boxes or cupboards required under this provision shall be calculated on the largest number of persons employed at any one time, and fractions of one hundred and fifty shall be reckoned as one hundred and fifty. Where the persons employed are employed in shifts, the calculation of the number employed shall be according to the largest number at work at any one time :

- (b) Nothing except appliances or requisites for first-aid shall be kept in a first-aid box or cupboard :
- (c) Each first-aid box or cupboard shall be placed under the charge of a responsible person who shall always be readily available during working hours. A notice shall be affixed in every work-room stating the name of the person in charge of the first-aid box or cupboard provided in respect of that room :
- (d) If an ambulance room is provided at the factory and such arrangements are made as to ensure the immediate treatment there of all injuries occurring in the factory, the Chief Inspector may by certificate exempt the factory from the requirements of this section to such extent and subject to such conditions as he may specify in the certificate ;

and, if in respect of any factory such requirements are not complied with, the factory shall be deemed not to be kept in conformity with the Factory and Workshop Act, 1901.

1 Edw. 7.
c. 22.

(2) The powers of the Secretary of State under section seven of the Police, Factories, &c. (Miscellaneous

6 & 7 Geo. 5.
c. 31.

Provisions) Act, 1916, to make orders in relation to first aid and ambulance arrangements in factories and workshops, shall be exercisable as respects any works or premises to which any of the provisions of the Factory and Workshop Acts, 1901 to 1920, apply, and such building and engineering operations as may be prescribed, in like manner as they are exercisable as respects factories and workshops.

(3) Where it appears to the Secretary of State that, in view of the number and nature of accidents occurring in any factory or class of factories, special provision ought to be made at that factory or at factories of that class to secure the safety of persons employed therein, he may by order require the occupier to make such reasonable provision by arrangements for special supervision in regard to safety, investigation of the circumstances and causes of accidents, and otherwise as may be specified in the order, and, if the occupier of any factory affected by any such order fails to comply with the requirements of the order or any of them, the factory shall be deemed not to be kept in conformity with the Factory and Workshop Act, 1901.

(4) This section, so far as it relates to factories and other places to which the Factory and Workshop Acts, 1901 to 1920, or any of them, apply, shall be construed as one with those Acts.

Supplemental.

Application
of Act.

30. The provisions of sections two to ten of this Act and of the amendments of any scheme made in pursuance thereof shall not apply to any case where the accident happened before the commencement of this Act.

Short title,
construction,
extent, com-
mencement
and repeal.
9 Edw. 7.
c. 16.
8 & 9 Geo. 5.
c. 8.
8 & 9 Geo. 5.
c. 14.

31.—(1) This Act may be cited as the Workmen's Compensation Act, 1923, and the principal Act, the Workmen's Compensation (Anglo-French Convention) Act, 1909, the Workmen's Compensation (Illegal Employment) Act, 1918, the Workmen's Compensation (Silicosis) Act, 1918, and this Act may be cited together as the Workmen's Compensation Acts, 1906 to 1923.

(2) This Act shall, save as otherwise expressly provided, be construed as one with the principal Act, and references in this Act to the principal Act shall be construed as references to that Act as amended by this Act.

(3) This Act shall not, except where otherwise expressly provided, extend to Northern Ireland.

(4) This Act shall come into operation on the first day of January, nineteen hundred and twenty-four.

(5) The enactments mentioned in the Second Schedule to this Act, except so far as they relate to Northern Ireland, are hereby repealed to the extent specified in the third column of that schedule.

SCHEDULES.

FIRST SCHEDULE.

Section 19.

AMENDMENTS OF SECTION 5 OF THE PRINCIPAL ACT.

1. In subsection (1) of section five of the principal Act, after the words "in the event of a company having commenced to be wound up," there shall be inserted the words "or a receiver or manager of the company's assets by or on the application of debenture-holders having been appointed."

2. At the end of subsection (2) of the same section there shall be added the words "or as the case may be may recover the balance from the receiver or manager."

3. For subsection (3) of the same section the following subsection shall be substituted :—

There shall be included amongst the debts which—

(i) under section thirty-three of the Bankruptcy Act, 1914, and section one hundred and eighteen of the Bankruptcy (Scotland) Act, 1913, are, in the distribution of the property or assets of a bankrupt, to be paid in priority to all other debts ;

(ii) under section two hundred and nine of the Companies (Consolidation) Act, 1908, are in the winding-up of a company to be paid in priority to all other debts ; and

(iii) under section one hundred and seven of the Companies (Consolidation) Act, 1908, are to be paid in priority to any claim for principal or interest in respect of debentures ;

the amount due in respect of any compensation or liability for compensation accrued before the following date, that is to say :—

(a) in the first case the date of the receiving order ;

(b) in the second case the date of the commencement of the winding up of the company ;

(c) in the third case the date of the appointment of the receiver or of possession being taken mentioned in the said section one hundred and seven ;

and the said section shall have effect accordingly.

Where the compensation is a weekly payment, the amount due in respect thereof shall, for the purposes of this provision, be taken to be the amount of the lump sum for which the weekly payment could, if redeemable, be redeemed if the employer made an application for that purpose under the First Schedule to this Act.

4. In subsection (5) of the same section the words "being wound up" shall be omitted.

Section 31.

SECOND SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
6 Edw. 7. c. 58.	The Workmen's Compensation Act, 1906.	Paragraph (a) of subsection (2) of section one. In subsection (5) of section five the words "being wound up." Subsection (2) of section seven. The proviso to paragraph (1) of the First Schedule. Paragraph (3) of the First Schedule from "and in the case" to the end of the paragraph. In paragraph (15) of the First Schedule the words from "on payment" to "as may be prescribed" and the words "and subject to the consent of the Treasury as to the fee to be paid under this paragraph." The proviso to paragraph (16) of the First Schedule.

Session and Chapter.	Short Title.	Extent of Repeal.
8 Edw. 7. c. 69.	The Companies (Consolidation) Act, 1908.	In paragraph (<i>d</i>) of subsection (1) of section two hundred and nine the words "not exceeding in any individual case one hundred pounds." In paragraph (3) of section two hundred and forty the words "not exceeding in any individual case one hundred pounds."
3 & 4 Geo. 5. c. 20.	The Bankruptcy (Scotland) Act, 1913.	In paragraph (<i>d</i>) of subsection (1) of section one hundred and eighteen the words "not exceeding in any individual case one hundred pounds."
4 & 5 Geo. 5. c. 59.	The Bankruptcy Act, 1914.	In paragraph (<i>d</i>) of subsection (1) of section thirty-three the words "not exceeding in any individual case one hundred pounds."
7 & 8 Geo. 5. c. 42.	The Workmen's Compensation (War Addition) Act, 1917.	The whole Act.
9 & 10 Geo. 5. c. 83.	The Workmen's Compensation (War Addition) Amendment Act, 1919.	The whole Act.